justify *preliminary* approval. The motion is **granted**.

2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on March 20, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 5, 2026.

7. 9:00 AM CASE NUMBER: C24-02789
CASE NAME: QUINITA DANIEL VS. HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION; COMPEL ARBITRATION
FILED BY: HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;
TENTATIVE RULING:

This hearing is **vacated** per stipulation. See order for date of continued hearing. If this matter settles, as represented, counsel are requested to submit a proposed stipulation and order to vacate the continued hearing date. No appearance is required at the August 5, 2026 hearing.

8. 9:00 AM CASE NUMBER: C25-01976
CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.

FILED BY: DISCOVERY BUILDERS, INC.
TENTATIVE RULING:
Introduction

Defendant Discovery Builders, INC. ("DBI") brings this Motion to Compel Arbitration and Stay Matter pursuant the Master Declaration For Title 7 & Dispute Resolution recorded in County of Contra Costa on June 12, 2014 ("the Master Declaration") and in accordance with California Code of Civil Procedure section 1281.2. The Motion is opposed by Plaintiffs Cassie and Christopher Lancaster ("Plaintiffs").

For the following reasons, the **Motion to Compel Arbitration is denied**.

Background Facts

This is a single-family home construction defect action arising under Civil Code sections 896 et seq.

("Title 7" Requirements for Real Property Defect Actions.)

Defendant Discovery Builders Inc., is a Northern California homebuilder and has been sued in the instant matter by the owners of a single-family home for alleged violations of Standards for Residential Construction, as defined in California Civil Code Sections 896 and 897. (Herman Decl. ¶ 3). The subject home is identified as APN 018-700-020, more commonly referred to as 500 Yelland Way, Brentwood California, lot 218 in the Portofino Estates Project ("the Property"). (Herman Decl. ¶ 4).

The Property was originally sold on February 11, 2015. (Herman Decl.) ¶ 5). The Property was sold subject to a "Purchase and Sale Agreements and Escrow Instructions" signed by DBI and the original purchaser. (Herman Decl. ¶ 6). The Purchase and Sale Agreement contains reference to the Binding Dispute Resolution Procedures at Paragraph 28 (Herman Decl. ¶ 7). At the time of said purchase, the original purchaser was provided with the "Master Declaration for Title 7 and Dispute Resolution" which includes extended discussion of the Binding Dispute Resolution Procedures (Herman Decl. ¶ 8).

In August 2019, Plaintiffs bought the Home from Edward J. Rettagliata Jr. and Bridget Rettagliata. (Lancaster Decl. ¶ 3.) Escrow closed on or around August 27, 2019. The home is not part of a common interest development, and there is no homeowner's association. (Lancaster Decl. ¶ 2.)

In December 2023, Plaintiffs served a Notice of Claims on DBI, initiating the pre litigation procedures under Civil Code section 910 et seq. The parties then agreed to a stipulated pre-litigation process in lieu of the Title 7 procedures. After months of effort, the process did not resolve and was terminated. (Kim Decl., ¶ 2.) Plaintiffs filed this action on July 9, 2025, alleging a single cause of action under Title 7. (Civ. Code §§ 895, et seq.; Complaint, ¶¶ 26-29.) After two 30-day extensions, DBI answered on November 3, 2025. (Kim Decl., ¶ 3.) DBI filed this motion on November 25, 2025.

Request for Judicial Notice

Plaintiffs in opposition to the Motion requests judicial notice of four documents. Exhibit A is a minute order denying a motion to compel arbitration in a different case in this Court. Exhibits B through D are of official filings made to the California Secretary of State.

Exhibit A is a record of a court of this State, of which judicial notice is proper. (Evid. Code §§ 452(d), 453.) Plaintiffs offer Exhibit A not as binding authority, but as a well-reasoned application of controlling California law to facts materially indistinguishable from those at issue here, and as the basis for the discussion in Plaintiffs' Opposition of this Court's prior ruling on the same Master Declaration, Binding Dispute Resolution Procedures, and Declaration of Notice to Subsequent Purchasers. (Kim Decl., ¶¶ 4-8.)

Exhibits B, C, and D are official records of the California Secretary of State, of which judicial notice is proper. (Evid. Code §§ 452(c), (h); see also Gov. Code §§ 12184, 12185.) Plaintiffs offer Exhibits B and C for the limited purpose of establishing that Discovery Builders, Inc. and West Coast Home Builders, Inc. are affiliated entities owned and controlled by members of the same family. The Statement of Information for Discovery Builders, Inc. identifies Albert D. Seeno III as its Chief Executive Officer, Secretary, and Director. The Statement of Information for West Coast Home Builders, Inc. identifies Albert D. Seeno Jr. as its Chief Executive Officer and Director. Albert D. Seeno III is the son of Albert D. Seeno Jr.

Plaintiffs offer Exhibit D for the limited purpose of establishing that Construction Arbitration Services, Inc., one of only two arbitration providers designated in Section IV.A of the Binding Dispute Resolution Procedures attached as Exhibit F to the Master Declaration, surrendered its right to transact intrastate business in California on August 19, 2010, approximately four and a half years before DBI recorded the Master Declaration in February 2015.

The Court grants Plaintiffs'' request for judicial notice of Exhibits A through D.

<u>Legal Standard for Motions to Compel Arbitration</u>

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 413.) The role of the trial court is to sit as a trier of fact, weighing any affidavits, declarations, and other documentary evidence, together with oral testimony received at the court's discretion, to reach a determination on the issue of arbitrability. (*Hotels Nev. v. L.A. Pac. Ctr., Inc.* (2006) 144 Cal. App. 4th 754, 758, *citing Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (Id. [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability…." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Additionally, Civil Code section 912, subpart (f) ("Section 912f") provides: "A builder shall record on title a notice of the existence of these procedures and a notice that these procedures impact the legal rights of the homeowner. This information shall also be included with the original sales documentation and shall be initialed and acknowledged by the purchaser and the builder's sales representative." As such, Section 912f addresses notice to future purchasers of the pre-litigation procedures in Title 7. Nothing in Title 7 makes reference to or provides authority to bind future purchasers to arbitration or judicial reference or other alternative dispute resolution procedures not enumerated in Title 7.

<u>Analysis</u>

Defendant's Initial Burden

The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.)

First, the moving party bears the burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394,413.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Gamboa v.*

Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44.) Although "[p]ublic policy favors contractual arbitration as a means of resolving disputes … that policy '"'does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057.)

The strong public policy favoring arbitration does not reach those who never agreed to arbitrate. (*Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990.) The party moving to compel bears the burden of proving a valid agreement which requires mutual assent and consideration. The parties must have actually agreed to arbitrate, and each must have given the other something of value. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 358.) Mere receipt of a document containing arbitration provisions is not enough. (*Mitri v. Arnel Management Co*. (2007) 157 Cal.App.4th 1164, 1173 [acknowledgment of receipt does not establish agreement to arbitration provisions].) "Absent a clear agreement to submit disputes to arbitration, courts will not infer that the right to a jury trial has been waived." (*Adajar v. RWR Homes, Inc*. (2008) 160 Cal.App.4th 563, 569.)

DBI argues that the documents recorded on title advised the buyers that the Binding Dispute Resolution Procedures set forth in Exhibit F to the Master Declaration are the final method of resolving any dispute. Plaintiffs proceeded to purchase the subject property with notice of the arbitration agreement, thereby agreeing to the arbitration provisions.

Plaintiffs point out that DBI's evidence establishes that the Rettagliatas—not Plaintiffs—signed a purchase agreement with DBI, and that the Rettagliatas—not Plaintiffs—were provided the Master Declaration. Plaintiff argues that DBI presents no evidence that Plaintiffs assented to any arbitration terms, or that any consideration passed between DBI and Plaintiffs, and without both elements, no agreement to arbitrate exists.

DBI relies on *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223 ("*Pinnacle*"); *Ridley v. Rancho Palma Grande Homeowners Assn*. (2025) 114 Cal.App.5th 788 ("*Ridley*"); *United States Home Corp. v. Ballesteros Trust* (2018) 134 Nev. 180 ("*Ballesteros*"); and *Christian v. Flora* (2008) 164 Cal.App.4th 539 ("*Christian*"). The common thread in each is a statutory framework, namely Davis Stirling in California and its Nevada equivalent in *Ballesteros*, that expressly binds successor owners to recorded CC&Rs, which is absent under Title 7.

Ridley concerned HOA CC&R maintenance duties within an existing Davis Stirling development. It says nothing about arbitration, and its "contractual nature" language applies only where legitimate CC&Rs exist under that statute. *Ballesteros* is a Nevada decision interpreting Nevada's Uniform Arbitration Act and Nevada common interest statutes. It has no bearing on Title 7. *Christian* interpreted road-easement CC&Rs in a rural subdivision. It confirmed that legitimate CC&Rs creating reciprocal rights can be enforced. It does not hold that a developer can unilaterally record arbitration terms against a single-family home outside any statutory framework.

Pinnacle involved a Davis-Stirling common interest development, and the Supreme Court's holding was expressly anchored in Davis-Stirling's authorization for developers to record binding covenants and in its statutory expansion of equitable servitudes. (*Pinnacle*, supra, 55 Cal.4th at pp. 236–242.) The California Supreme Court emphasized that under the FAA, arbitration is "a matter of consent, not coercion", and in *Pinnacle*, consent came from the Davis Stirling framework itself. (Id. at pp. 236, 240–241.) Pinnacle recognized that it allowed a non-signatory to an arbitration agreement to be bound in

Ruiz via Code of Civil Procedure section 1295 because the Legislature may devise reasonable rules in civil litigation to permit the delegation to another party of the power to consent to arbitration instead of a jury trial. (*Pinnacle*, supra, 55 Cal.4th at 241, citing *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 853.)

In *McArthur*, the First District Court of Appeal confirmed the trial court's denial of a motion to compel arbitration to a non-signatory to a 2011 amendment to a family trust. (*McArthur v. McArthur* (2014) 224 Cal.App.4th 651, 653.) The Court stated under the Davis-Stirling Act, each owner of a condominium unit either has expressly consented or is deemed by law to have agreed to the terms in a recorded declaration. (*Id. at* 660.) The Court highlighted the importance that the Davis-Stirling Act statutorily confers standing upon an association to prosecute claims for construction damage in its own name without joining the individual condominium owners. (*Id* at 661; citing *Pinnacle, supra*, 55 Cal.4th at p. 241.)

Here, the Master Declarations do not function the same as the CC&Rs in *Pinnacle* because there is no statutory authority to bind Plaintiffs to the arbitration agreement. Plaintiffs are not bound by the Davis Sterling Act like in *Pinnacle*, or by Code of Civil Procedure section 1295 in *Ruiz*. No such legislative mechanism exists to bind Plaintiffs to the arbitration agreement in Title 7 of the Civil Code.

As such, Defendant has not carried its initial burden to show the existence of an agreement to arbitrate between the parties.

Conclusion

For the reasons analyzed above, the **Motion to Compel Arbitration is Denied.**

9. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
FOR OSC RE SALE OF REAL PROPERTY
FILED BY:
TENTATIVE RULING:*

Before the Court is an application for an order directing the Sheriff to sell real property pursuant to certain debt collection statutes in the Code of Civil Procedure. The application was filed by plaintiffs and judgment creditors, George Pavana and Philip Philip. The defendant has not appeared, but third-party claimant, Nimmy Parecadan, has opposed the application.

A brief procedural history is set forth in the Stipulation and Order filed on May 15, 2026. The recitals therein state, in relevant part:

> WHEREAS, Judgment Creditors filed their Application for an Order Directing Sheriff to Sell Real Property in connection with [Parecadan]'s property located at 1849 Canyon Dr. Pinole, California 94564 ("Subject Property") on August 6, 2025;
>
> WHEREAS, Judgment Creditors filed an ex parte application for an Order to Show Cause ("OSC") hearing related to the application for sale of 1/3 of the Subject Property on August 26, 2025;